

Lt. Coln. Mullera S. Kaverappa vs Smt Dazi Kaverappa on 16 February, 2023

Author: Alok Aradhe

Bench: Alok Aradhe

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MFA No.3852 of 2014

IN THE HIGH COURT OF KARNATAKA AT BENGALURU
DATED THIS THE 16TH DAY OF FEBRUARY 2023
PRESENT

THE HON'BLE MR. JUSTICE ALOK ARADHE
AND

THE HON'BLE MR. JUSTICE VIJAYKUMAR A PATIL
MISCELLANEOUS FIRST APPEAL NO.3852 OF 2014 (MC)

BETWEEN:

1. LT. COLN. MULLERA S. KAVERAPPA
S/O LATE M.M. SOMANNA
AGED ABOUT 53 YEARS
R/OFF, HAKATHUR VILLAGE & POST

MADIKERI TALUK
KODAGU DISTRICT 571 201.

Digitally
signed by
RUPA V
Location: High
Court of
Karnataka

...APPELLANT

(BY SRI. M.T. NANAIAH, SR. COUNSEL FOR
SRI. PRABHUGOUD B. TUMBIGI, ADV.,)

AND:

1. SMT. DAZI KAVERAPPA
AGED ABOUT 42 YEARS
W/O LT. COLN. MULLERA S. KAVERAPPA.
2. SMT.GUNA SAGARI
(DELETED WITH THE PERMISSION
OF THE COURT)

BOTH ARE R/AT MOOKAMBIKA NILAYA
RANIPET ROAD
MADIKERI TOWN & POST
MADIKERI TALUK
KODAGU DISTRICT-571 201.

...RESPONDENTS

(BY MS/MRS. SANJANA RAO, ADV.,)

THIS MFA IS FILED U/S 19(1) OF THE FAMILY COURTS ACT, AGAINST THE JUDGMENT AND DECREE DATED:30.4.2014 PASSED IN M.C NO.42/2008 ON THE FILE OF THE SENIOR CIVIL JUDGE, MADIKERI, DISMISSING THE PETITION FILED U/SEC 13(1)(ia) & (ib) OF HINDU MARRIAGE ACT.

THIS APPEAL COMING ON FOR FINAL HEARING, THIS DAY, ALOK ARADHE J., DELIVERED THE FOLLOWING:

JUDGMENT

This appeal under Section 19(1) of the Family Courts Act, 1984 has been filed against the judgment dated 30.04.2014 passed by the Trial Court, by which the petition filed by the appellant under Section 13 of the Hindu Marriage Act, 1955 (hereinafter referred to as 'the Act'), has been dismissed.

2. Facts giving rise to filing of this appeal briefly stated are that the marriage between the parties was performed on 19.11.1997 at Kodagu District, Madikeri. Out of the wedlock, two sons namely Shreyas Bopanna and Hriday Muthanna were born. The appellant, at the relevant point of time, was serving as Lieutenant Colonel in Indian Army. The appellant filed a petition on 19.12.2008 seeking dissolution of marriage on the ground of desertion and cruelty. It was pleaded in the petition that the behaviour of the respondent No.1 was unkind to the appellant and she used to persistently nag the appellant. It was averred that the respondent No.1 used to accuse the appellant of unchastity and domineering conduct. It was also pleaded that the respondent No.1 neither cooked food for the appellant nor used to wash his clothes. It was also averred that the respondent No.1 used to indulge in unnatural sexual practice. It was pleaded that the respondent No.1 deserted the appellant in August 2001. Accordingly, the appellant has sought a decree for dissolution of marriage on the ground of cruelty and desertion.

3. The respondents filed statement of objections in which factum of marriage was admitted. It was further admitted that out of the wedlock, two sons were born. However, the other averments made in the petition were denied. It was also denied that the respondent No.1 ever misbehaved with the appellant. It was averred that the respondent No.1 accompanied the appellant to his area of posting and stayed together with him. It was also pleaded that the respondent No.1 used to attend the parties at Army Officers' mess with the appellant even after the birth of the children. It was pleaded that the respondent No.1 neither deserted the appellant nor has treated him with cruelty.

4. The Family Court, on the basis of pleadings of the parties, framed the issues and recorded the evidence. The appellant, in order to prove his case, examined himself as PW-1 and his brother Nanjappa as PW-2 and exhibited five documents namely Exs.P1 to P5. The respondents examined

themselves as RW-1 and RW-2 and exhibited 27 documents namely Exs.R1 to R27. The Family Court, vide judgment dated 30.04.2014, inter alia, held that the appellant has failed to prove the plea of desertion and cruelty. Accordingly, the petition filed by the appellant was dismissed.

5. Learned counsel for the appellant has submitted that the parties are residing separately for the past about 22 years and there are no chances of their reunion. It is further submitted that the respondent No.1 had treated the appellant with cruelty and has deserted him. However, the aforesaid aspect of the matter has not been appreciated by the Family Court.

6. On the other hand, learned counsel for the respondent No.1 has supported the judgment and decree passed by the Family Court.

7. We have considered the submissions made on both sides and have perused the record. Before proceeding further, it is apposite to take note of certain well settled legal principles. A petition seeking decree of divorce on the ground of cruelty should contain specific instances of cruelty (See: NEELAM KUMAR VS. DAYA RANI)¹. It is equally well settled legal proposition that mere difference of opinion between the couples and ordinary wear and tear of married life and the disputes between them, do not by itself amount to cruelty. (See: SAVITHRI PANDEY VS. PREM CHANDRA PANDEY)². The parties to a dispute are required to describe the major and standard of cruelty and to lead cogent evidence to succeed in the plea of dissolution of marriage on the ground of cruelty. (See: SMT.MAYADEVI Vs. JAGDISH PRASAD)³.

(2010) 13 SCC 298 AIR 2002 SC 591 AIR 2007 SC 1426

8. A Five Judge Bench of the Supreme Court in LACHMAN UTAMCHAND KIRIPALANI Vs. MEENA @ MOTA⁴ which has been followed in DEBANANDA TAMULI Vs. KAKUMONI KATAKY⁵ while dealing with the expression 'desertion', has held that desertion means the intentional abandonment of the spouse by the other without the consent of the other and without a reasonable cause. It has further been held that deserted spouse must prove that there is a factum of separation and there is an intention on the part of deserting spouse to bring the cohabitation to a permanent end. It has also been held that in other words, there should be animus deserendi on the part of the deserting spouse. The issue whether a case of desertion is made out or not, depends on the facts of each case and is a matter of drawing an inference on the basis of evidence on record.

AIR 1964 SC 40 2022 SCC Online SC 187

9. In the light of aforesaid well settled legal principles, we may advert to the facts of the case in hand. From careful scrutiny of the averments made in the petition, it is evident that the averments made in the petition are vague and do not give any specific institution of cruelty. The appellant has merely pleaded that the respondent made an accusation of adultery and she was unkind in her behaviour with the appellant. It has been stated that the respondent No.1 used to torture the appellant. However, no specific institution of cruelty have either been referred to in the pleading or in the statement of the appellant. The averments with regard to cruelty are general in nature. No evidence has been lead to describe the major and standard of cruelty. Therefore, the Trial Court has rightly

negatived the plea of desertion of marriage on the ground of cruelty.

10. Now, we may advert to the ground of desertion. The appellant, in his petition, has pleaded that the respondent had deserted him in the year 2001. However, again no particulars of the date have been given on which the respondent No.1 had deserted the appellant. Besides, the appellant is also conspicuously silent about the effort made by him to persuade the respondent No.1 to join the matrimonial home. It is not in dispute that two sons have been born to the parties from the wedlock. On the basis of the evidence on record, the Family Court has recorded a finding that the appellant, after his field tenure in the year 2007, took respondent No.1 along with his children to Pune where, at the relevant point of time, he was posted. The Family Court has rightly held that the ground of desertion is not proved. The findings recorded by the Family Court are based on meticulous appreciation of the evidence on

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record and do not suffer from any infirmity warranting interference of this Court in this appeal.

For the aforementioned reasons, we do not find any ground to interfere with the order passed by the Family Court.

In the result, the appeal fails and is hereby dismissed.

Sd/-

JUDGE Sd/-

JUDGE RV